IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. NO. 3421 OF 2024
(Petition under Section 482 of the Code of Criminal Procedure, 1973)

Rakesh Malhotra,
S/o Shri Suresh Malhotra, aged about 47 years,
R/o E-88, Greater Kailash-I, New Delhi - 110048
... Petitioner

Versus

1. State (NCT of Delhi)
2. Neeraj Aggarwal (Complainant) ... Respondents

PETITION FOR QUASHING OF FIR

The Petitioner most respectfully submits as under:

1. That the present petition is filed invoking the inherent jurisdiction of this Hon'ble Court under Section 482 Cr.P.C. for quashing of FIR No. 0512/2024 registered at Police Station Greater Kailash, New Delhi for offences u/s 406 and 420 IPC, and all proceedings arising therefrom.

2. That the dispute between the Petitioner and Respondent No. 2 is purely civil and contractual in nature, arising out of a share purchase agreement dated 14/02/2022, and has been given a criminal colour with the sole object of pressurising the Petitioner.

3. That the necessary ingredients of entrustment under Section 405 IPC and of deception at the inception under Section 415 IPC are wholly absent from the allegations in the FIR.

4. That the parties have since arrived at an amicable settlement recorded in a Memorandum of Settlement dated 03/07/2024, and the entire amount of Rs. 42,00,000/- has been paid to Respondent No. 2.

5. That continuance of the criminal proceedings would amount to an abuse of the process of the Court.

PRAYER

It is therefore prayed that this Hon'ble Court may be pleased to quash FIR No. 0512/2024 registered at P.S. Greater Kailash and all consequential proceedings, and to stay further investigation pending disposal of this petition.

New Delhi
Dated: 16/07/2024

Advocate for the Petitioner
Ms. Shalini Kapoor